
INCEPTION REPORT — PACKAGE SD-1 (1799-1970)

PREPARATION OF CODE OF DELEGATED/SUBORDINATE LEGISLATION OF BANGLADESH

Covering the Period: 1799-1970

Submitted by: THE LEGAL EMPIRE
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Building Project

Client : Legislative and Parliamentary Affairs Division,
Ministry of Law, Justice and Parliamentary Affairs,
Government of the People's Republic of Bangladesh

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1. INTRODUCTION AND BACKGROUND

The Government of the People's Republic of Bangladesh, through the Legislative and Parliamentary Affairs Division under the Ministry of Law, Justice and Parliamentary Affairs, has initiated the "Strengthening Legislative Capacity and Legal Awareness Building Project" (Project Code: 224359600). A key component of this project is the preparation of a comprehensive Code of Delegated/Subordinate Legislation of Bangladesh.

Package SD-1 specifically covers the identification, collection, analysis, classification, and codification of ALL delegated/subordinate legislations (rules, regulations, by-laws, orders, notifications, circulars, etc.) enacted, promulgated, or issued during the period 1799 to 1970.

This Inception Report outlines our understanding of the assignment, the methodology to be adopted, sources to be consulted, the classification framework, work plan, team deployment, and quality assurance measures.

2. SCOPE OF PACKAGE SD-1

Package SD-1 encompasses the following:

- a) Systematic identification of ALL delegated/subordinate legislations issued during 1799-1970 that are applicable or were applicable to the

territory of present-day Bangladesh.

- b) Collection and compilation of the full texts of identified subordinate legislations from official gazettes, government archives, and other authoritative sources.
- c) Legal analysis of each subordinate legislation, including:
 - Identification of the parent/enabling Act
 - Classification by subject matter, ministry, and legal authority
 - Determination of current status (active, amended, repealed, obsolete)
 - Cross-referencing with subsequent amendments and repeals
- d) Preparation of a structured Code of Delegated/Subordinate Legislation with appropriate indexing, cross-referencing, and annotation.

3. HISTORICAL CONTEXT (1799-1970)

The period 1799-1970 spans three distinct political and legal eras, each with its own legislative framework and system of delegated legislation:

ERA 1: EAST INDIA COMPANY AND EARLY BRITISH RULE (1799-1858)

Period : 1799-1858

Territory : Bengal Presidency (including present-day Bangladesh)

Sovereign : East India Company / British Crown (after 1858)

Key Legislative Milestones:

- Bengal Regulations (1799-1834): The earliest codified regulations for Bengal, enacted by the Governor-General in Council. These regulations governed revenue collection, judicial administration, police, land tenure, and various civil and criminal matters.
- Charter Act of 1833: Centralized legislative power in the Governor-General of India in Council. Bengal Regulations ceased after 1834, replaced by Acts of the central legislature.
- Charter Act of 1853: Further legislative reforms.

Types of Subordinate Legislation:

- Bengal Regulations (quasi-legislative in nature)
- Governor-General's Orders and Notifications
- Revenue Board Circulars and Orders
- Judicial Circulars
- Executive Orders under Regulations

ERA 2: BRITISH CROWN RULE (1858-1947)

Period : 1858-1947

Territory : Bengal Province / East Bengal (present-day Bangladesh)

Sovereign : British Crown

Key Legislative Milestones:

- Government of India Act 1858: Transfer of power from EIC to Crown
- Indian Councils Act 1861: Provincial legislative councils established
- Indian Councils Act 1892: Expanded legislative councils
- Government of India Act 1909 (Morley-Minto Reforms)
- Government of India Act 1919 (Montagu-Chelmsford Reforms): Dyarchy introduced; provincial governments gained rule-making powers
- Government of India Act 1935: Provincial autonomy; expanded delegated legislation powers
- Partition of Bengal 1905 (reversed 1911): Created Eastern Bengal and

Assam province

- Partition of India 1947: East Bengal became part of Pakistan

Types of Subordinate Legislation:

- Rules framed under Acts of the Central Legislature
- Rules framed under Acts of the Bengal Legislative Council/Assembly
- Regulations under various Codes (CPC, CrPC, IPC)
- Municipal by-laws and local body regulations
- Notifications in the official Gazette
- Executive Orders and Government Resolutions
- Revenue and land tenure rules
- Educational regulations
- Police and prison rules

ERA 3: PAKISTAN PERIOD (1947-1970)

Period : 1947-1970

Territory : East Pakistan (East Bengal) — present-day Bangladesh

Sovereign : Dominion/Republic of Pakistan

Key Legislative Milestones:

- Independence Act 1947: Pakistan created; inherited British Indian laws
- Government of India (Adaptation) Order 1947
- Constitution of Pakistan 1956 (first constitution)
- Martial Law 1958-1962 (Ayub Khan)
- Constitution of Pakistan 1962
- Martial Law 1969-1970 (Yahya Khan)
- Legal Framework Order 1970

Types of Subordinate Legislation:

- Rules under central and provincial Acts
- Ordinance rules and regulations
- Martial Law Orders and Regulations (MLOs, MLRs)
- Governor's Orders
- Municipal and local body by-laws
- Service rules and regulations
- Industrial and trade regulations
- Family law rules
- Revenue and tax rules
- Education and university rules
- Cooperative society rules

4. OBJECTIVES

The specific objectives of the SD-1 assignment are:

- a) To create a complete and authoritative inventory of ALL delegated/ subordinate legislations enacted during 1799-1970 applicable to present-day Bangladesh.
- b) To collect and preserve the full texts of all identified subordinate legislations.
- c) To analyze each subordinate legislation for its legal standing, applicability, and current status.
- d) To classify and categorize all subordinate legislations using a standardized framework.
- e) To prepare a structured Code of Delegated/Subordinate Legislation

that serves as a comprehensive, accessible, and authoritative reference for lawmakers, judiciary, legal practitioners, government agencies, and the public.

- f) To identify inconsistencies, overlaps, gaps, and obsolete provisions within the body of subordinate legislation.
- g) To provide recommendations for legislative reform where appropriate.

5. METHODOLOGY AND APPROACH

Our methodology follows a five-phase approach:

PHASE 1: INCEPTION AND PLANNING (Month 1)

- Detailed review and analysis of Terms of Reference
- Finalization of methodology and classification framework
- Identification and mapping of all data sources and repositories
- Establishment of digital database structure
- Initial stakeholder consultations
- Submission of Inception Report

PHASE 2: IDENTIFICATION AND COLLECTION (Months 2-5)

- Systematic search of official gazettes (1799-1970)
- Archival research at:
 - * Bangladesh Gazette archives
 - * National Archives of Bangladesh
 - * Bangladesh Parliament Library
 - * Supreme Court Library
 - * Law Commission Library
 - * District Record Rooms
 - * University law libraries
- Cross-referencing with parent Acts to identify all subordinate legislation made thereunder
- Creation of Master Inventory with unique reference numbers
- Digital scanning and preservation of source documents
- Periodic progress reports to the Project Office

PHASE 3: ANALYSIS AND CLASSIFICATION (Months 4-8)

- Legal analysis of each identified subordinate legislation:
 - * Identification of parent/enabling Act and section
 - * Determination of the rule-making authority
 - * Assessment of legal validity and constitutional compliance
 - * Determination of current status:
 - (i) Active/In Force
 - (ii) Amended (with amendment history)
 - (iii) Repealed (with repealing instrument)
 - (iv) Obsolete/Spent
 - (v) Superseded
 - * Subject matter classification
 - * Ministry/Division classification
- Cross-referencing between related subordinate legislations
- Identification of inconsistencies, conflicts, and gaps
- Quality review of analysis

PHASE 4: CODIFICATION AND DRAFTING (Months 7-10)

- Preparation of the Code structure and format
- Drafting of the Code with:
 - * Chronological arrangement within each category

- * Subject matter index
- * Ministry/Division index
- * Parent Act cross-reference index
- * Status index (active/repealed/amended)
- * Alphabetical index
- * Keyword search index
- Annotation of each entry with:
 - * Full citation
 - * Parent Act reference
 - * Amendment history
 - * Current status
 - * Cross-references
 - * Brief synopsis
- Internal quality review and peer verification

PHASE 5: FINALIZATION AND SUBMISSION (Months 10-12)

- Draft Code submission to Project Office
- Stakeholder review and consultation
- Incorporation of feedback
- Final quality assurance review
- Submission of Final Code with all supporting documentation
- Presentation to the Project Office and relevant authorities

6. SOURCES AND REPOSITORIES

The following sources and repositories will be consulted:

PRIMARY SOURCES:

- a) Official Gazettes:
 - Bengal Gazette / Calcutta Gazette (1799-1947)
 - East Bengal / East Pakistan Gazette (1947-1970)
 - Gazette of India (1858-1947)
 - Gazette of Pakistan (1947-1970)
- b) Government Archives:
 - National Archives of Bangladesh, Dhaka
 - Bangladesh National Museum archives
 - District Record Rooms (especially Dhaka, Chittagong, Rajshahi)
 - Revenue Record Rooms
- c) Legislative Records:
 - Bangladesh Parliament (Jatiya Sangsad) Library
 - Records of the Bengal Legislative Council/Assembly
 - Records of the East Pakistan Provincial Assembly
- d) Judicial Records:
 - Supreme Court of Bangladesh Library
 - High Court Division records
 - District court archives

SECONDARY SOURCES:

- e) Law Libraries:
 - Bangladesh Law Commission Library
 - Dhaka University Law Library
 - Bangladesh Bar Council Library
 - Attorney General's Office Library
- f) Published Compilations:

- The Bengal Code (published compilations)
- Unrepealed General Acts of Bengal (various editions)
- Pakistan Code
- East Pakistan Code
- Various annotated law books and commentaries

g) Digital Resources:

- Bangladesh Laws Online (bdlaws.minlaw.gov.bd)
- LawsOfBangladesh.com
- Indian Kanoon (for historical British Indian legislation)
- British Library digital archives
- Commonwealth Legal Information Institute (CommonLII)

7. CLASSIFICATION FRAMEWORK

All identified subordinate legislations will be classified using the following multi-dimensional framework:

DIMENSION 1: HISTORICAL ERA

- Era 1: East India Company Period (1799-1858)
- Era 2: British Crown Rule (1858-1947)
- Era 3: Pakistan Period (1947-1970)

DIMENSION 2: TYPE OF INSTRUMENT

- Rules
- Regulations
- By-Laws
- Orders (Executive, Statutory, General, Special)
- Notifications (Statutory, General)
- Circulars
- Schemes
- Directions

DIMENSION 3: SUBJECT MATTER (Major Categories)

01. Constitutional and Administrative Law
02. Criminal Law and Justice
03. Civil Law and Justice
04. Land and Revenue
05. Local Government and Municipal Affairs
06. Education
07. Health and Sanitation
08. Labour and Employment
09. Trade, Commerce and Industry
10. Finance, Banking and Taxation
11. Transport and Communication
12. Agriculture, Fisheries and Livestock
13. Forests and Environment
14. Police and Public Order
15. Prisons and Correctional Services
16. Registration and Stamps
17. Family Law and Personal Law
18. Military and Defence
19. Religious and Charitable Endowments
20. Miscellaneous

DIMENSION 4: RULE-MAKING AUTHORITY

- Governor-General in Council

- Governor of Bengal/East Pakistan
- Central/Federal Government
- Provincial Government
- Specific Ministry/Division
- Statutory Body/Authority
- Local Government/Municipal Authority

DIMENSION 5: CURRENT STATUS

- Active/In Force
- Amended (with history)
- Repealed (with instrument)
- Obsolete/Spent
- Superseded
- Partially in Force
- Status Uncertain (requires further verification)

8. WORK PLAN AND TIMELINE

Month	Phase	Key Activities and Deliverables
1	Inception & Planning	- Inception Report submitted - Methodology finalized - Source mapping completed - Database structure established
2	Identification & Collection	- Gazette search commenced (1799-1858) - Archival research initiated - Initial inventory building
3	Identification & Collection	- Gazette search (1858-1900) - Cross-referencing with parent Acts - Progress Report 1
4	Identification & Collection + Analysis	- Gazette search (1900-1947) - Analysis of Era 1 legislations begun - Master Inventory update
5	Identification & Collection + Analysis	- Gazette search (1947-1970) - Analysis of Era 2 legislations - Progress Report 2
6	Analysis & Classification	- Complete analysis of all eras - Classification framework applied - Cross-referencing completed
7	Analysis & Classification + Codification begins	- Status determination for all entries - Inconsistency identification - Code structure finalized - Progress Report 3
8	Analysis & Classification + Codification	- Analysis quality review - Codification of Era 1 - Draft Code (Era 1) prepared
9	Codification	- Codification of Era 2 - Draft Code (Era 2) prepared - Progress Report 4
10	Codification + Finalization begins	- Codification of Era 3 - Complete Draft Code compiled - Draft submitted for review
11	Finalization	- Stakeholder review - Feedback incorporation - Final quality assurance - Progress Report 5
12	Finalization & Submission	- Final Code submitted - All supporting documents submitted - Presentation to authorities - Final Report

9. TEAM DEPLOYMENT

Role	Deployment	Primary Phase(s)

Team Leader / Lead Legal Consultant	Full-time	All Phases
Senior Legal Researcher	Full-time	Phases 2, 3, 4
Legislative Drafting Specialist	Full-time	Phases 3, 4, 5
Legal Analyst / Codification Expert	Full-time	Phases 2, 3, 4
Data Management & IT Specialist	Full-time	All Phases
Research Associate	Full-time	Phases 2, 3
Quality Assurance / Review Specialist	Part-time (escalating)	Phases 3, 4, 5

Additional support staff (paralegals, data entry operators) will be deployed as needed during the collection and codification phases.

10. QUALITY ASSURANCE FRAMEWORK

- Source Verification: Every subordinate legislation entry will be verified against at least TWO independent sources.
- Legal Review: All analysis and classification will be reviewed by a senior legal professional.
- Peer Review: Cross-checking by team members to ensure consistency.
- Random Sampling: Periodic random sampling and audit of entries for accuracy and completeness.
- Stakeholder Validation: Periodic reviews by the Project Office.
- Final Quality Audit: Comprehensive audit before final submission.

11. EXPECTED DELIVERABLES

- Inception Report (this document)
- Master Inventory/Database of all subordinate legislations (1799-1970)
- Analysis and Classification Report
- Code of Delegated/Subordinate Legislation (SD-1: 1799-1970)
 - Volume I: Era 1 — East India Company Period (1799-1858)
 - Volume II: Era 2 — British Crown Rule (1858-1947)
 - Volume III: Era 3 — Pakistan Period (1947-1970)
- Index Volumes (Subject, Ministry, Parent Act, Chronological, Status)
- Summary of Findings and Recommendations
- Digital Database (searchable)
- Monthly/Periodic Progress Reports
- Final Report

12. RISKS AND MITIGATION

Risk	Likelihood	Impact	Mitigation
Unavailability of historical gazette records	High	High	Multiple source strategy; use secondary sources and published compilations
Incomplete or damaged archival records	Medium	Medium	Cross-referencing with multiple repositories; note gaps in inventory
Ambiguous legal status of some subordinate legislations	Medium	Medium	Expert legal analysis; judicial precedent review; flag uncertain cases
Volume of subordinate legislations exceeds initial estimates	High	Medium	Phased approach; adequate team deployment; use of technology for efficiency
Access restrictions to certain archives	Low	High	Early coordination with Project Office for access;

			alternative source mapping
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Language barriers (Persian, Urdu texts in early period)	Medium	Medium	Engage translators for Persian/Urdu texts; consult language experts

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END OF INCEPTION REPORT